Legal research — Nhill in the Democratic Republic of the Congo

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Version	2.0.0 — 27 October 2026
Main jurisdiction	Democratic Republic of the Congo (Congolese law and OHADA uniform law)
Purpose	framework applicable to publishing and operating the Nhill online software (business management and point-of-sale SaaS) and its marketing website; basis of templates `01` to `19`
Method	reading official texts when available online, otherwise secondary sources identified as such (legal commentary, specialised press); sources consulted on 26–27 October 2026
Status	**working document, not validated by a lawyer**. It is not legal advice

> **Warning.** This file was prepared without access to the DRC Official Journal and without consulting a lawyer admitted to a Congolese bar. Several recent texts (2024–2026) are only known through commentary or press reports; their exact scope, validity and interplay must be confirmed. Nothing specific to the operating company (legal form, RCCM trade-register number, national identification, tax number, address, capital, managers) is known: these appear in square brackets in the templates and must never be invented. French is the reference language of the templates; the English versions are translations for information.

1. Executive summary

Topic	What is known	Consequence for Nhill	Certainty
Personal data	Digital Code (Ordinance-law No. 23/010 of 13 March 2023), Book III: principles, data-subject rights, security, data protection officer, prior formalities, controlled transfers outside the DRC	Nhill is **controller** for its prospects, paying customers and administrators, and **processor** for the data businesses enter	High on the framework; medium on details
Supervisory authority	Data-protection authority tasks given provisionally to ARPTC (2024); press and commentary then report its replacement by a new authority, **ARPTIC** (2026)	Identify the authority **competent on the filing date** and the procedure in force	**Low: check first**
Formalities and fees	Decision No. 039/ARPTC/CLG/2025 of 11 September 2025 (declaration, authorisation, transfer, fees, validity periods); its legality is disputed by commentators	Budget and timeline of the formalities; hosting outside the DRC (e.g. Supabase) a priori requires a **transfer authorisation**	Medium (secondary source), validity disputed
Digital activities and services	Digital Code, art. 13–17 (regimes); orders No. 004 and No. 005 of 11 March 2026 (authorisation / declaration); 2026 interministerial order on fees, start-ups exempt according to the press	Determine whether Nhill's activity falls under declaration or authorisation ("application hosting") and whether the operator can be exempt	Low to medium
E-commerce	Digital Code, art. 48–72: pre-contractual information, content of online offers, withdrawal, advertising, direct marketing (prior consent)	Website and terms disclosures; opt-in for commercial messages	Medium

Topic	What is known	Consequence for Nhill	Certainty
Consumer law	No adopted consumer code identified; a consumer-protection bill is under discussion; older sector texts and Law No. 18/020 of 9 July 2018 (prices and competition)	Nhill's customers are businesses: mainly B2B regime; care with sole traders	Medium
Invoicing and VAT	16 % VAT (Ordinance-law No. 10/001 of 20 August 2010); standardised invoice produced by an electronic tax device, only certified software allowed for VAT payers, penalties from 15 May 2026 according to the press	Nhill **is not certified**: management documents only; target non-VAT businesses first, or use alongside the DGI device	Medium to high
Company law and accounting	DRC is an OHADA member (accession deposited on 13 July 2012); uniform acts apply (companies, general commercial law, accounting: 10-year retention)	Operator's company and trade registration to be created; document retention periods	High
Intellectual property	Law No. 82-001 of 7 January 1982 (industrial property, including trademarks); Ordinance-law No. 86-033 of 5 April 1986 (copyright, including software depending on its wording, to be confirmed)	Registration of the "Nhill" trademark to check (availability not checked); licence clauses	Medium
Employment (activity log)	The named log of employees' actions is a processing of employee data	Staff information notice provided to businesses (template 17)	Medium

2. Assumptions register

Each template refers to the assumptions it relies on. An invalidated assumption requires reviewing the templates listed.

No.	Assumption	Templates	How to check	Status
H-01	The operator is a company under Congolese law (OHADA form to choose: SARL, SAS, SA…) registered with the Kinshasa RCCM	all	articles of association, RCCM extract	**open** — no company identified
H-02	Nhill's customers are businesses (traders, companies, associations) acting for their trade; there is no sale to consumers	01, 02, 07, 09	business model; lawyer: status of a sole trader	to validate
H-03	Nhill is controller for visitor, prospect, user-account and billing data, and processor for data entered by businesses	03, 06, 15, 18	lawyer; Digital Code, Book III	to validate
H-04	The production database may be hosted outside the DRC (Supabase, region to choose): international transfer requiring prior authorisation	03, 06, 14, 18	choice of host; competent authority	**open** — host and region not chosen
H-05	The competent data-protection authority is ARPTC on a provisional basis, or ARPTIC if its creation and takeover of these tasks are effective	03, 06, 14, 18, 19	founding texts; authority's website	**open — priority**
H-06	The fees and procedures of Decision No. 039/ARPTC/CLG/2025 still apply despite challenges and the change of authority	checklist § 6	authority; lawyer	open

No.	Assumption	Templates	How to check	Status
H-07	Nhill's activity (online software hosted for third parties) may fall under the **authorisation** regime of orders No. 004 and 005/2026 if it is classed as application hosting; a young company could fall under declaration or an exemption	checklist § 6	text of the orders; ministry / authority	open
H-08	Commercial prospecting by e-mail, SMS and WhatsApp requires the person's prior consent (opt-in); silence is not consent	03, 16	Digital Code, art. 68–72	to validate
H-09	Documents issued by Nhill are not standardised invoices; a VAT payer must use a device or software certified by the DGI	01, 02	DGI; tax adviser	high, to confirm
H-10	Congolese law and the Kinshasa courts (Kinshasa/Gombe commercial court) are chosen in the contracts; OHADA CCJA arbitration is an option	01, 02, 05, 09, 10, 11, 12	lawyer	choice to make
H-11	Prices are set in USD and/or CDF; conversion uses the rate stated on the invoice	02, 09	pricing policy; Law No. 18/020; foreign-exchange rules	to validate
H-12	Availability of the name "Nhill" as a trademark and company name has not been checked	01, 05, 12	prior-rights search (DRC, international)	**open**
H-13	The marketing website sets no cookie and uses no third-party analytics	04	technical check of the site	true in 2.0.0 (checked in the code)
H-14	Business data is kept during the subscription, then 90 days after it ends to allow export, unless a legal obligation says otherwise	02, 06, 15	product policy; lawyer (10-year retention lies with the business)	proposal
H-15	A data breach is notified to the authority and, where needed, to individuals within the Digital Code deadlines (72 hours according to a secondary summary)	06, 14	official text	to confirm
H-16	The pilot programme is free, time-limited and without purchase commitment	09	pricing policy	proposal
H-17	Applications are provided under a non-exclusive licence tied to the subscription; the code remains the publisher's property	01, 12	articles / assignment of developers' rights	to validate
H-18	Partners (referrers, integrators, trainers) are independent, paid by commission, with no power to sign on the operator's behalf	10	lawyer; tax adviser (withholding)	to validate

3. Findings by area

3.1 Personal data

- **Text**: Ordinance-law No. 23/010 of 13 March 2023 on the Digital Code, Book III (art. 183–270 in the version consulted) [S01]. Principles of lawfulness, purpose, proportionality, accuracy, limited retention, security; rights to information, access, rectification, objection, erasure; security obligation; data protection officer (art. 222); transfers outside the DRC controlled (art. 187, 201 and 202 according to the commentary available) [S01, S07].

- **Authority**: tasks entrusted provisionally to ARPTC [S03]; several 2026 sources report a new authority, ARPTIC, presented as the single authority for digital regulation, electronic certification and data protection, and the disappearance of ARPTC [S04]. **The exact status could not be read in an official text** (H-05).
- **Formalities and fees**: Decision No. 039/ARPTC/CLG/2025 of 11 September 2025, according to a law firm's commentary [S02]: declaration (USD 250 file fee + USD 250), authorisation (USD 500 + 500), transfer authorisation (USD 750 + 750); valid 3, 2 and 1 years respectively; fines of 8 to 200 million Congolese francs. The decision's legality and constitutionality are disputed by commentators [S02b]. **Amounts and periods to be reconfirmed with the authority** (H-06).
- **Nhill's role**: controller for its own files (website, prospects, accounts, billing, support); processor for businesses' data (customers, sales, employees) — hence the data processing agreement (template 06).

3.2 Digital activities and services

- Digital Code, art. 13–17: regimes for digital activities and services (declaration, authorisation) [S01].
- Ministerial orders No. 004 and No. 005 of 11 March 2026: conditions for authorising and declaring digital activities and services; according to commentary, application hosting requires authorisation and start-ups a declaration, with a transition period until 30 June 2026 [S05].
- 2026 interministerial order on fees: kept in force, start-ups exempt according to the press; different amounts are quoted for local and foreign hosting [S06]. **Text not read** (H-07).

3.3 E-commerce and prospecting

- Digital Code, art. 48–72 [S01]: information to provide (provider identity, price, terms), content of online offers (art. 53–54), right of withdrawal (art. 61, mainly for consumers), identifiable advertising (art. 66–67), direct marketing subject to prior consent, silence not being consent (art. 68–72).
- Consequences: legal notice and terms accessible on the website; separate, unticked marketing consent box (already in place on the site); unsubscribe link in every message; consent register.

3.4 Consumers, prices and competition

- No adopted consumer code was identified; a consumer-protection bill has been reviewed [S11]. Reference texts cited by commentators: Law No. 18/020 of 9 July 2018 on freedom of prices and competition [S10] and older trade texts.
- Nhill targets businesses (H-02); for a sole trader, use balanced clauses (no obviously unfair clause, simple termination).

3.5 Tax and invoicing

- VAT at 16 % [S09]. Standardised invoice: electronic tax device, certification of invoicing systems, only certified software allowed since 1 July 2025, penalties announced from 15 May 2026 [S08].
- Consequence: the terms of service must state clearly that Nhill is **not** a certified invoicing system (already displayed in the software for VAT payers).
- Billing of the Nhill subscription by the operator: if the operator is VAT-registered, its own invoices must be standardised (tax adviser).

3.6 Companies, accounting, contracts

- The DRC applies OHADA law since its accession (instruments deposited on 13 July 2012) [S14]: Uniform Acts on commercial companies, general commercial law, accounting (retention of records: 10 years) [S15].
- Choice of forum: Kinshasa commercial court; arbitration option (CCJA) to discuss (H-10).

3.7 Intellectual property

- Trademarks: Law No. 82-001 of 7 January 1982 on industrial property [S12].
- Copyright: Ordinance-law No. 86-033 of 5 April 1986 [S13]; protection of software and ownership of code written by developers or contractors: assignment clause to include in their contracts (outside this file).
- Digital Code, art. 49 (cited in earlier research on e-commerce): to be reread.
- Availability of "Nhill": **not checked** (H-12).

3.8 Employment

- The named activity log processes the business's employees' data: prior information of staff (purpose, data, retention, rights). Template 17 provided to businesses; interplay with the Labour Code to validate.

4. List of templates

No.	Template (FR, reference)	Template (EN)	Use
01	Conditions générales d'utilisation	Terms of use	use of the website and applications
02	Conditions de service SaaS	SaaS terms of service	subscription contract with the business
03	Politique de confidentialité	Privacy policy	information to individuals
04	Politique cookies	Cookie policy	marketing website
05	Mentions légales	Legal notice	marketing website
06	Accord de traitement des données	Data processing agreement	contract annex (processing)
07	Engagement de niveau de service	Service level agreement	availability, support
08	Politique d'utilisation acceptable	Acceptable use policy	prohibited uses
09	Convention de programme pilote	Pilot programme agreement	supervised trial
10	Contrat de partenariat	Partnership agreement	referrers, integrators, trainers
11	Accord de confidentialité	Non-disclosure agreement	exchanges with partners, contractors
12	Licence des applications	Application licence	installed applications (Windows, Linux, Android)
13	Politique de sécurité	Security policy (public summary)	trust, tenders
14	Procédure de violation de données	Data breach procedure	internal
15	Politique de conservation	Retention and deletion policy	internal and contractual
16	Consentement à la prospection	Marketing consent form and register	prospecting, WhatsApp, e-mail
17	Information du personnel	Staff information notice	given to businesses (activity log)
18	Registre des traitements	Record of processing activities	internal
19	Demande d'exercice des droits	Data subject request form	access, rectification, erasure

Every template starts with a header: jurisdiction, assumptions, sources, clauses to validate. Fields to complete are in square brackets `[…]`; clauses to have validated carry the mark **[TO VALIDATE]**.

5. Clauses requiring legal validation

Ref.	Clause	Templates	Question for the lawyer
V-01	Limitation of liability (cap = amounts paid over 12 months)	02, 07, 12	validity and enforceability under Congolese / OHADA law; exceptions (gross negligence, fraud)
V-02	Governing law and forum (Kinshasa) or arbitration	01, 02, 09, 10, 11, 12	best forum, arbitration clause
V-03	Prices in USD, payment in CDF at the day's rate	02, 10	foreign-exchange rules, Law 18/020
V-04	Suspension for non-payment after a grace period, read-only mode	02	formal-notice periods
V-05	Transfer of data outside the DRC and safeguards	03, 06	prior authorisation, competent authority (H-04, H-05)
V-06	Breach notification deadline (72 h)	06, 14	exact Digital Code deadline
V-07	Retention periods	03, 15	limitation periods, accounting obligations
V-08	Marketing consent (opt-in) and proof	16	art. 68–72
V-09	Staff information about the activity log	17	Labour Code, staff representation
V-10	Withdrawal for sole traders	02	applicability of art. 61
V-11	Partner commission, non-compete, non-solicitation	10	validity, tax (withholding)
V-12	Tax disclaimer (management documents)	01, 02	sufficiency under the standardised-invoice reform
V-13	Appointment of a data protection officer	03, 18	obligation (art. 222) and thresholds

6. Validation checklist before commercial launch

#	Action	Owner	Before
1	Set up the operating company (OHADA form), obtain RCCM, national identification, tax number	founders + lawyer / one-stop shop	any contract
2	Check name availability and register the "Nhill" trademark	lawyer / IP adviser	public communication
3	Identify the competent data-protection authority (ARPTC / ARPTIC) and the procedure in force	lawyer	filings
4	Choose the host and region; if outside the DRC, apply for the transfer authorisation	technical lead + lawyer	production
5	File the processing declarations / authorisations (prospects, customers, operator's staff, processing on behalf of customers)	DPO / lawyer	data collection

#	Action	Owner	Before
6	Classify the activity under orders No. 004 and 005/2026; check eligibility for a start-up exemption	lawyer	billing subscriptions
7	Appoint a data protection officer or document why not	management	filings
8	Complete all `[…]` fields of templates 01 to 19 and have clauses V-01 to V-13 reviewed	lawyer	publication
9	Validate the tax position: Nhill = management documents; operator's own invoicing (VAT, standardised invoice)	tax adviser	first payment
10	Publish legal notice, terms, privacy policy on the website; remove the "draft" banners	management	opening the forms
11	Set up the record of processing (template 18) and the breach procedure (template 14)	DPO	production
12	Provide template 17 to businesses when the activity log is enabled	product team	first customers
13	Review this file every 6 months and with every new text	DPO / lawyer	—

7. Sources

Consulted on 26 and 27 October 2026. "Secondary": commentary, press or legal writing, not the official text. The sources are in French.

Ref.	Source	Type
S01	Ordinance-law No. 23/010 of 13 March 2023 on the Digital Code — PDF published by Droit-Numérique.cd; presentation page	text (unofficial copy)
S02	Avocats.cd — business compliance with personal-data rules (decision 039/ARPTC/CLG/2025)	secondary
S02b	Droit-Numérique.cd — on the illegality of the ARPTC decision; PDF "Illégalité de la décision de l'ARPTC"	commentary
S03	Droit-Numérique.cd — ARPTIC/ARPTC entrusted with the data-protection authority's tasks	secondary
S04	Droit-Numérique.cd — ARPTIC as single authority; Ouragan.cd — "ARPTC no longer exists" (January 2026); Rights Empower — ARPTIC replaces ARPTC	secondary
S05	Droit-Numérique.cd — orders No. 004 and 005 of 11 March 2026; Leganews — order No. 005/2026 (declaration); Numerico.cd — limits of the order	secondary
S06	Mediacongo — analysis of the new order (taxes, approvals, penalties); Journal de Kinshasa — start-ups exempt; Afrique IT News	press
S07	Droit-Numérique.cd — transfer of personal data outside the DRC	secondary
S08	DGI — standardised invoice reform; Bankable — only certified software allowed; La Prospérité — end of the moratorium, penalties from 15 May 2026	official + press
S09	Ordinance-law No. 10/001 of 20 August 2010 (VAT), consolidated text — Leganet	text
S10	Law No. 18/020 of 9 July 2018 on freedom of prices and competition — FAOLEX	text
S11	ACP — review of the consumer-protection bill	official press agency
S12	Law No. 82-001 of 7 January 1982 on industrial property — WIPO Lex	text
S13	Ordinance-law No. 86-033 of 5 April 1986 (copyright and related rights) — WIPO Lex	text

Ref.	Source	Type
S14	OHADA — deposit of the DRC's accession instruments, Dakar, 13 July 2012	official
S15	OHADA Uniform Act on accounting and financial reporting (2017)	text
S16	DLA Piper — Data protection laws of the world: Democratic Republic of the Congo	secondary

Limitation: the Digital Code articles cited come from the S01 PDF copy and commentary; the 2024–2026 texts (orders, decision, creation of ARPTIC) were not read in their official version published in the Official Journal.